

25NWCV03015 25NWCV03015

County: los-angeles

Division: Civil Law and Motion

Department: SEP

Hearing date: 2026-09-22

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Case Number: 25NWCV03015 Hearing Date: September 22, 2026 Dept: SEP

ABUJUBARA v. BMW OF NORTH AMERICA, LLC, ET AL.

CASE NO.: 25NWCV03015

HEARING: 09/22/2026 @ 10:30 AM

#13

TENTATIVE ORDER

Defendant BMW of North America, LLC's motion for summary judgment is DENIED.

Defendant's motion for summary adjudication as to the first and second causes of action is DENIED.

Moving party to give notice.

Defendant BMW of North America, LLC (BMW) moves for summary judgment, or alternatively summary adjudication of the first and second causes of action in the complaint.

Background

On August 21, 2025, Plaintiff Mesadaq Abujubara on behalf of Alfakir LLC (Plaintiff) filed this lemon law action against BMW, McKenna Motor Company, Inc. dba McKenna BMW, and Does 1 through 10. The complaint alleges that Plaintiff experienced defects and nonconformities to warranty with his 2021 BMW 5 Series, VIN: WBA53BH02MWX15746 (Subject Vehicle). (Complaint, ¶¶ 16-17.) The complaint asserts two causes of action: (1) violation of Song-Beverly Act – breach of express warranty against BMW and (2) negligent repair against McKenna Motor Company.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment, courts apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

In moving for summary judgment, a defendant has the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) A defendant must support the motion “with evidence including ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of... judicial notice.’” (Aguilar, supra, 25 Cal.4th at p. 855, citing Code Civ. Proc., § 437c, subd. (b).)

Once a moving party has satisfied the initial burden of proof, “the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, see also Code Civ. Proc., § 437c, subd. (c).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1127.)

Lodged Documents

There appears to be confusion about whether certain documents should be filed under seal. As argued by Plaintiff, there are no protective orders or motions to seal on this record.

Evidentiary Objections

Plaintiff makes two evidentiary objections to the declaration of Marisa Moore. The Court rules as follows:

OVERRULED: 1

SUSTAINED: 2

Plaintiff objects to Exhibit 1 and Exhibit 2 in the declaration of Marisa Moore on the grounds that Marisa Moore, as defense counsel, lacks personal knowledge and failed to authenticate the documents. For Exhibit 1, defense counsel attests: “Attached as Exhibit 1 is a true and correct copy of the Warranty Vehicle Inquiry that was produced to Plaintiff on November 12, 2025.” (Moore Decl., ¶ 2.) This is confirmed by the declaration of Plaintiff’s counsel. (Thomas Decl., ¶¶ 6-7.) The second objection does not state the same: “Attached as Exhibit 2 is a true and correct copy of the Motor Vehicle Retail Installment Sale Contract.” (Moore Decl., ¶ 3.) Submitting a declaration by counsel stating only that an attached copy is a “true and correct copy” is not sufficient to authenticate. (Claudio v. Regents of the University of California (2005) 134 Cal.App.4th 224, 244.)

Discussion

BMW moves for summary judgment or, alternatively, summary adjudication as to the first and second causes of action in the complaint. As the second cause of action is not alleged against BMW, the Court proceeds only as to the first cause of action.

BMW moves on the grounds that the Subject Vehicle does not qualify as a “new motor vehicle” under the Song-Beverly Consumer Warranty Act (Song-Beverly).

BMW refers to the Supreme Court of California’s ruling in *Rodriguez v. FCA US LLC* [Rodriguez] (2024) 17 Cal.5th 189, 196. In *Rodriguez*, the Supreme Court considered whether a 2011 Dodge Ram 2500 which was bought used with an unexpired manufacturer’s warranty constituted a “new motor vehicle” and concluded that it “does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Id., at p. 196-97.) The Supreme Court of California held “that the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) — and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (Id., at p. 206.) The Supreme Court reasoned that this distinction becomes apparent when looking at the exceptions for dealer-owned vehicles or demonstrators—“By specifically mentioning dealer-owned vehicles and demonstrators, the Legislature highlighted vehicles for which a manufacturer’s new car warranty arises upon sale to a retail buyer. Thus, the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale.” (Id., at p. 199-200.)

BMW shows that the Subject Vehicle was originally sold with BMW’s 4-year/50,000 mile New Vehicle Limited Warranty which became effective on July 14, 2021. (UMF, ¶ 4.) It is undisputed that Plaintiff received the balance of that initial warranty with their purchase of the Subject Vehicle on June 26, 2024. (UMF, ¶ 4.)

BMW argues that to the extent that Plaintiff argues that BMW issued a certified pre-owned (CPO) warranty to Plaintiff with the Subject Vehicle, a CPO warranty is not the same as a New Vehicle Limited Warranty. BMW argues that *Rodriguez I*, supra, 77 Cal.App.5th at p. 220 supports this view: “we think the most natural interpretation of the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is that it, too, refers to vehicles that have never been previously sold to a consumer and come with full express warranties.”

As such, BMW establishes that Plaintiff did not purchase the Subject Vehicle new, but rather purchased it used with a remaining balance of the New Vehicle Limited Warranty. Thus, BMW shifts the burden to Plaintiff.

Plaintiff’s Opposition

In opposition, Plaintiff points to the same Warranty Vehicle Inquiry produced by BMW to argue that it shows that a CPO warranty was effective as of July 14, 2021 with an enrollment date of June 26, 2024. (AMF, ¶ 11.) Plaintiff also refers to other documents produced by BMW including a document signed by BMW and Plaintiff stating “All BMW Certified vehicles ... Are backed by the BMW Certified Warranty[.]” (AMF, ¶ 11.)

Plaintiff argues that *Rodriguez* did not address whether a manufacturer who issued a CPO warranty for a used vehicle can be liable for a breach of express warranty claim under Civil Code section 1795.5. In *Rodriguez*, the Supreme Court noted “[f]or new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez*, supra, 17 Cal.5th at p. 202.) Plaintiff argues that BMW’s arguments ignore *Kiluk v. Mercedes-Benz USA, LLC* [Kiluk] (2019) 43 Cal.App.5th 334 and that BMW failed to address this theory in the complaint. The complaint, which frames this motion, alleges “Defendant contracted to provide an additional warranty for the vehicle being certified pre-owned, which included additional coverage for the earlier of 12 Months (1 Year) or Unlimited Miles. Defendant stepped into the role of the retail seller by marketing its certified pre-owned warranty program and issuing a new express warranty at the time of sale.” (Complaint, ¶ 8.)

Kiluk involved the sale of a CPO vehicle which was accompanied by an additional used vehicle warranty issued by the manufacturer in connection with the sale. (Id. at p. 336.) A jury found the defendant-manufacturer was liable under the SBA for breach of express and implied warranties. (Ibid.) The Court of Appeal affirmed this decision by concluding that “[a]lthough the Song-Beverly Act generally binds only distributors and retail sellers in the sale of used goods,...Mercedes Benz stepped into that role by issuing an express warranty on the sale of a used vehicle.” (Id., at p. 337.) The Court of Appeal reasoned:

Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the “same” as a manufacturer under section 1793.2.

(Id., at p. 340.) The Kiluk Court noted that the parties disputed whether the subject vehicle was a “new motor vehicle” under the Song-Beverly Act but determined that “even if the vehicle was not a “new motor vehicle” under Song-Beverly Act, Mercedes Benz was still liable under the used goods provisions of section 1795.5.” (Ibid.)

Here, the Court agrees with Plaintiff that even if BMW establishes that the Subject Vehicle was purchased used, there remains a triable issue as to whether BMW stepped into the shoes of a retailer by issuing the CPO warranty to Plaintiff and thus could be liable under Civil Code section 1795.5.

BMW does not reply or address Kiluk.

Accordingly, BMW's motion for summary judgment and summary adjudication as to the first cause of action is DENIED.

As noted above and raised by Plaintiff, the second cause of action for negligent repair is not asserted against BMW, and whether the Subject Vehicle is a used motor vehicle is not relevant to a negligent repair analysis. Therefore, BMW's motion for summary adjudication as to the second cause of action is DENIED.